

Federal Constitution

NOTES

Art. 83—(cont.)

Clause (8): Inserted by Act A704, section 3, in force from 10-06-1988.

Art. 84

1. This Article was deleted by Act A704, section 4, in force from 10-06-1988 and read as follows:

“84. (1) Where any interest in land in a State vested in the Federation or a public authority for federal purposes ceases to be required for federal purposes, it shall revert to that State if the State Government agrees to pay to the Federation—

- (a) in a case where the land, or an interest therein, was acquired by the State Government in pursuance of Clause (5) of Article 83, or was acquired by the State Government at the expense of the Government of the Federation of Malaya before Merdeka Day, an amount equal to the market value of the interest vested in the Federation or public authority;
- (b) in any other case, at the option of the State Government, either—
 - (i) an amount equal to the market value of that interest; or
 - (ii) an amount equal to the sums paid (otherwise than as rent) by the Federation, or by the Government of the Federation of Malaya before Merdeka Day, in respect of the grant of that interest, together with the market value of any improvements made (otherwise than at the expense of the State) to the land after that grant.

(2) Where any interest in land to which Clause (1) applies does not revert to the State in accordance with that Clause, the Federal Government or the public authority, as the case may be, may sell the interest on such terms and conditions as that Government or authority may think fit.”.

2. *See* Art. 86(1), (2), (4), (5) & 88.

Grant to Federation of land reserved for federal purposes

85. (1) Where any land in a State is reserved for any federal purposes, the Federal Government may require the State Government, and it shall then be the duty of that Government, to cause to be made to the Federation a grant of the land in perpetuity without restrictions as to the use of the land, but subject to the payment of a premium to be determined in accordance with Clause (2) and to the payment annually of an appropriate quit rent.

(2) The premium referred to in Clause (1) shall be equal to the market value of the land reduced by—

- (a) the market value of any improvements made (otherwise than at the expense of the State) while the land was in use for federal purposes; and
- (b) the amount, if any, paid by the Federation, or paid before Merdeka Day by the Government of the Federation of Malaya, in respect of the cost of acquisition of any interest in the land by the State Government.

(3) Without prejudice to Clause (1), where any land in a State is reserved for any federal purposes, the Federal Government may offer to release the land to the State on condition that the State pays to the Federation the market value and the amount mentioned in paragraphs (a) and (b) of Clause (2); and if the State Government accepts the offer the reservation shall cease.

(4) Except as provided by this Article, land in a State which is reserved for federal purposes shall not cease to be so reserved, and all land so reserved shall be controlled and managed by or on behalf of the Federal Government, and the Federal Government may grant any right of occupation, control or management, or a tenancy or lease, of the whole or any part of such land, to any person—

- (a) for the use of the land by such person for any duration for the federal purpose for which it is reserved, or for any purpose ancillary or incidental thereto; or
- (b) where the Federal Government is unable for any reason to use the land for the time being for the federal purpose for which it is reserved, for its use by such person for any purpose other than a federal purpose, for such duration and on such terms and conditions as the Federal Government may determine.

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Art. 85

1. This Article which read as follows was substituted by Act A704, section 5, in force from 10-06-1988:

“85. (1) Where any land in a State which is reserved for any federal purposes ceases to be required for those purposes, the Federal Government shall offer to release the land to the State on condition that the State pays to the Federation—

(a) the market value of any improvements made (otherwise than at the expense of the State) while the land was in use for federal purposes; and

(b) the amount, if any, paid by the Federation, or paid before Merdeka Day by the Government of the Federation of Malaya, in respect of the cost of acquisition of any interest in the land by the State Government,

and if the State Government accepts the offer the reservation shall cease.

(2) Where the State Government does not accept an offer made in accordance with Clause (1), then, unless by agreement between the Federal Government and the State Government the land is reserved for another federal purpose, the Federal Government may require the State Government, and it shall then be the duty of that Government, to cause to be made to the Federation a grant of the land in perpetuity without restrictions as to the use of the land, but subject to the payment of a premium equal to the market value of the land reduced by the amounts which would have been payable to the Federation under Clause (1) if the said offer had been accepted, and to the payment annually of an appropriate quit rent; and where such a grant is made to the Federation, the Federal Government may sell and transfer or lease the land on such terms and conditions as it may think fit.

(3) Except as provided by this Article, land in a State which is reserved for federal purposes shall not cease to be so reserved, and all land so reserved shall be controlled and managed by or on behalf of the Federal Government.”.

2. *See* Art. 86(2), (5) & 88.

(5) In this Article the reference to land in a State reserved for federal purposes includes—

- (a) any land which was reserved before Merdeka Day in accordance with the provisions of any law then in force in the State for any purpose which has become a federal purpose after Merdeka Day;
- (b) any land reserved for any federal purpose after Merdeka Day in accordance with the provisions of any law for the time being in force in a State;
- (c) any State land referred to in the repealed Clause (4) of Article 166; and
- (d) any land in a State reserved for federal purposes by virtue of Clause (7) of Article 83.

Disposition of land vested in the Federation

86. (1) Where any interest in land is vested in the Federation, or in a public authority, for any purpose, the Federation or the public authority may dispose of that interest or any smaller interest in the land to any person as it deems fit.

(2) Where any interest in land in a State is disposed of by or to the Federation or any public authority in pursuance of this Article or of Article 85, it shall be the duty of the Government of that State to register the transaction accordingly.

Determination of disputes as to land values

87. (1) Where any dispute arises between the Federal Government and a State Government as to the making of any payment by or to the Federation under the foregoing Articles of this Chapter, or as to the amount of any such payment, the dispute shall be referred, at the instance either of the Federal Government or of the State Government, to the Lands Tribunal appointed in accordance with this Article.

(2) The Lands Tribunal shall consist of—

- (a) a chairman, who shall be appointed by the Chief Justice of the Federal Court and who shall be, or have been, or be qualified to be a judge of the Federal Court, the

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Art. 86

Clause (6)

This Clause was added by Act A585, section 23, in force from 14-04-1984 and read as follows:

“(6) The foregoing provisions of this Article shall not apply to any land or interest in land in the Federal Territory of Kuala Lumpur or the Federal Territory of Labuan howsoever vested in the Federation, and the Federation may dispose of such land or interest.”.

1. This Article was substituted by Act A704, section 6, in force from 10-06-1988. The previous Article read as follows:

“86. (1) Where any interest in land is vested in the Federation, the Federation may, subject to Article 84 and to Clause (2) of this Article, dispose of that interest or any smaller interest in the land.

(2) Every such disposition of an interest in land shall be made conditional on the land being used for a federal purpose specified therein, and no such disposition shall be made to a person other than a public authority except—

(a) under and in accordance with the provisions of federal law; or

(b) by an order of the Yang di-Pertuan Agong laid and approved in accordance with Clause (3):

Provided that nothing in this Clause shall apply to a disposition authorized by Article 84 or Article 85, or to a disposition by the Federation to any person for the purposes of the implementation of any treaty, agreement or convention with any other country, or to any person in his capacity as consular or diplomatic representative of any other country.

(3) An order of the Yang di-Pertuan Agong under paragraph (b) of Clause (2) shall be laid before both Houses of Parliament and shall not take effect until it is approved by resolution of each House.

(4) Except as provided by Article 84, no interest in land vested for federal purposes in a public authority, or vested in any other person by virtue of a disposition under this Article, shall be disposed of by that authority or person otherwise than to the Federation.

(5) Where any interest in land in a State is disposed of by or to the Federation or any public authority in pursuance of this Article or of Article 84 or 85, it shall be the duty of the Government of that State to register the transaction accordingly.

(6) The foregoing provisions of this Article shall not apply to any land or interest in land in the Federal Territory of Kuala Lumpur or the Federal Territory of Labuan howsoever vested in the Federation, and the Federation may dispose of such land or interest.”.

2. *See* Art. 88.

Art. 87

See Art. 88 & 156.

Clause 2(a)

a. This paragraph was substituted by Act 26/1963, section 70, in force from 16-09-1963, and replaced the original paragraph which read as follows:

“(a) a chairman, who shall be a person who is or has been or is qualified to be a judge of the Supreme Court, and who shall be appointed by the Chief Justice;”.

b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.

Court of Appeal or a High Court, or shall before Merdeka Day have been a judge of the Supreme Court;

- (b) a member who shall be appointed by the Federal Government; and
- (c) a member who shall be appointed by the State Government.

(3) The practice and procedure of the Lands Tribunal shall be regulated by rules of court framed by the Rules Committee or other authority having power under written law to make rules or orders regulating the practice and procedure of the Federal Court.

(4) An appeal shall lie from the Lands Tribunal to the Federal Court on any question of law.

Application of Articles 83 to 87 to States not having a Ruler

88. In their application to any of the States not having a Ruler, Articles 83 to 87 shall have effect—

- (a) subject to such adaptations (if any) as Parliament may by law provide, being adaptations required to secure that they apply (as nearly as practicable having regard to differences in the system of land tenure) in the same manner as they apply to other States; and
- (b) in the case of the States of Sabah and Sarawak with the omission in paragraph (a) of Clause (5) of Article 83.

Malay reservations

89. (1) Any land in a State which immediately before Merdeka Day was a Malay reservation in accordance with the existing law may continue as a Malay reservation in accordance with that law until otherwise provided by an Enactment of the Legislature of that State, being an Enactment—

- (a) passed by a majority of the total number of members of the Legislative Assembly and by the votes of not less than two-thirds of the members present and voting; and

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Art. 87—(cont.)

- c. The words “Chief Justice of the Federal Court” substituted for the words “Lord President of the Supreme Court” and the words “Federal Court, the Court of Appeal or a High Court” substituted for the words “Supreme Court or a High Court” by Act A885, paragraph 10(a), in force from 24-06-1994.

Clause (3)

The words “or other authority having power under written law to make rules or orders regulating the practice and procedure of the Federal Court” were added by Act 26/1963, section 70, in force from 16-09-1963.

Clause (4)

The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.

Clauses (3) & (4)

The word “Federal” substituted for the word “Supreme” by Act A885, paragraph 10(b), in force from 24-06-1994.

Art. 88

1. The present Article was inserted by Act 26/1963, section 44, in force from 16-09-1963. The original Article read as follows:

“88. Parliament shall by law make provision for modifying Articles 83 to 87 in their application to Malacca and Penang in such manner as it may consider to be required.”.

2. *Paragraph (b)*

- a. Act 59/1966, section 2, in force from 09-08-1965, deleted the words “and Singapore” which appeared after the words “Borneo States”.
- b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, and Act A514, section 19, both in force from 27-08-1976.

Art. 89

See Art. 90(3) & 161A(5).

Clause (1): See Art. 62(3) & 90(2).

- (b) approved by resolution of each House of Parliament passed by a majority of the total number of members of that House and by the votes of not less than two-thirds of the members voting.

(1A) Any law made under Clause (1) providing for the forfeiture or reversal to the State Authority, or for the deprivation, of the ownership of any Malay reservation, or of any right or interest therein, on account of any person, or any corporation, company or other body (whether corporate or unincorporate) holding the same ceasing to be qualified or competent under the relevant law relating to Malay reservations to hold the same, shall not be invalid on the ground of inconsistency with Article 13.

(2) Any land in a State which is not for the time being a Malay reservation in accordance with the existing law and has not been developed or cultivated may be declared as a Malay reservation in accordance with that law:

Provided that—

- (a) where any land in a State is declared a Malay reservation under this Clause, an equal area of land in that State which has not been developed or cultivated shall be made available for general alienation; and
- (b) the total area of land in a State for the time being declared as a Malay reservation under this Clause shall not at any time exceed the total area of land in that State which has been made available for general alienation in pursuance of paragraph (a).

(3) Subject to Clause (4), the Government of any State may, in accordance with the existing law, declare as a Malay reservation—

- (a) any land acquired by that Government by agreement for that purpose;
- (b) on the application of the proprietor, and with the consent of every person having a right or interest therein, any other land,

and shall, in accordance with the existing law, immediately declare as a Malay reservation, in a case where any land ceases to be a Malay reservation, any other land of a similar character and of an area not exceeding the area of that land.

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Art. 89—(*cont.*)

Clause (1A): Added by Act A514, paragraph 7(a), in force from 15-05-1981.

Clause (3)

- a. The words “and shall, in accordance with the existing law, immediately declare as a Malay reservation, in a case where any land ceases to be a Malay reservation, any other land of a similar character and of an area not exceeding the area of that land.” were added after paragraph (b) by Act A514, paragraph 7(b), in force from 15-05-1981.
- b. Paragraph (c) was repealed by Act A514, paragraph 7(b), in force from 15-05-1981 and read as follows:
“(c) in a case where any land ceases to be a Malay reservation, any land of a similar character and of an area not exceeding the area of that land.”.

(4) Nothing in this Article shall authorize the declaration as a Malay reservation of any land which at the time of the declaration is owned or occupied by a person who is not a Malay or in or over which such a person has then any right or interest.

(5) Without prejudice to Clause (3), the Government of any State may, in accordance with law, acquire land for the settlement of Malays or other communities, and establish trusts for that purpose.

(6) In this Article “Malay reservation” means land reserved for alienation to Malays or to natives of the State in which it lies; and “Malay” includes any person who, under the law of the State in which he is resident, is treated as a Malay for the purposes of the reservation of land.

(7) Subject to Article 161A, this Article shall have effect notwithstanding any other provision of this Constitution; but (without prejudice to any such other provision) no land shall be retained or declared as a Malay reservation except as provided by this Article and Article 90.

(8) The provisions of this Article shall apply to the Federal Territories of Kuala Lumpur and Putrajaya in the like manner that they apply to a State, save that Clause (1) in its application to the Federal Territories of Kuala Lumpur and Putrajaya shall be modified to read that any land in the Federal Territory of Kuala Lumpur or the Federal Territory of Putrajaya which immediately before Merdeka Day was a Malay reservation in accordance with the existing law may continue as a Malay reservation in accordance with that law until otherwise provided by an Act of Parliament passed by a majority of the total number of members of each House of Parliament and by the votes of not less than two-thirds of the members present and voting in each House.

Special provisions relating to customary land in Negeri Sembilan and Malacca, and Malay holdings in Terengganu

90. (1) Nothing in this Constitution shall affect the validity of any restrictions imposed by law on the transfer or lease of customary land in the State of Negeri Sembilan or the State of Malacca, or of any interest in such land.

(1A) For the purpose of Clause (1)—

(a) “transfer” includes any charge, transmission or vesting, or creation of any lien or trust, or entry of any caveat,